

25STCV24211 25STCV24211

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-08-25

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Case Number: 25STCV24211 Hearing Date: August 25, 2026 Dept: 529

ROBERT AMES vs

AMICA MUTUAL INS CO.

MOTION TO COMPEL FURTHER DISCOVERY

Date of Hearing: August

25, 2026 Trial Date: June 14, 2027

Department: 529 Case No.: 25STCV24211

Moving Party: Defendant

Amica Mutual Insurance Company

Responding Party: Plaintiff

Robert Ames

Meet and Confer: Yes. Feasel Decl.

BACKGROUND

On August 18, 2025, Plaintiff Robert

Ames filed a complaint against Amica Mutual Insurance Company for declaratory relief, breach of contract, and breach of implied covenant of good faith and fair dealing. Plaintiff alleges he filed various insurance claims involving vandalism against various vehicles he owned and insured by Defendant.

[TENTATIVE] RULING

Defendant

Amica Mutual Insurance Company's Motion to Compel Plaintiff's Further Responses to Discovery Requests is DENIED.

DISCUSSION

Defendant Amica

Mutual Insurance Company moves the court for an order compelling Plaintiff Robert Ames to serve further responses to Defendant's discovery request on the grounds that Plaintiff has failed, without justification, to serve full, complete and proper responses to Defendant's discovery requests.

A motion to

compel further responses be brought based on responses to requests for admission ("RFA") that: (1) provide evasive or incomplete answers; or (2) make unmeritorious or overly-generalized objections.

(CCP § 2033.290(a).) However, a

motion to compel further responses cannot compel the admission of matters already denied. (*Holguin v. Superior Court* (1972) 22 Cal.App.3d 812, 821.)

Defendant

contends it served requests for admissions on Plaintiff on December 9, 2025.

(Exh. A.) Plaintiff, however, objected that the requests for admissions were unsigned. Although a minor clerical error, Defendant resent the requests, with signature, on January 5, 2026. (Exh. B.) Plaintiff provided responses to Defendant's Requests for Admissions on February 11, 2026. (Exh. C.) Plaintiff's "responses" included numerous objections to relevance without an actual response and misidentified the responding party in many areas. On February 15, 2026, Defendant sent Plaintiff a meet-and-confer letter outlining the deficiencies in his responses. (Exh. D.) Defense counsel also made numerous attempts to speak with Plaintiff on the phone, given his pro per status. (Feasel Decl.) After finally speaking, Plaintiff agreed to amend his responses. On April 24, 2026, and May 18, 2026, amended responses were received from Plaintiff. (Exh. E.) However, Plaintiff failed to correct most, if not all, of the various deficiencies in his responses.

In

opposition, Plaintiff argues the motion is untimely as it was filed after the statutory 45-day deadline. The court agrees. As noted by Plaintiff, under Code

of Civil Procedure section 2033.290(c), a motion to compel further responses must be filed within 45 days after service of the allegedly insufficient responses unless the parties have agreed to a later specific date in writing. If the motion is not filed within this time, the right to compel further responses is waived, as this 45-day limit is “mandatory and jurisdictional.” (Mullikin Med. Ctr.) (1997) 58 Cal.App.4th 1403, 1410.) As noted by Defendant, Plaintiff initially responded to the discovery on February 11, 2026. Upon meeting and conferring, Plaintiff provided subsequent responses on April 24, 2026 and May 18, 2026, thus making the absolute latest Defendant could have filed a motion to compel further by July 2, 2026. Defendant, however, did not file and serve the motion until July 15, 2026. Because the 45-day limit is “mandatory and jurisdictional”, the court must deny the motion to compel further.

Accordingly, Defendant Amica Mutual Insurance Company's Motion to Compel Plaintiff's Further Responses to Discovery Requests is DENIED.